

Contentious Chamber

Decision on the merits 69/2025 of April 15, 2025

File number: DOS-2020-03175

Subject: Complaint regarding the sending of professional correspondence to the private address of curators by several tax authorities responsible for the collection of taxes from bankrupt companies

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Christophe Boeraeve and Yves Pouillet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by Master Pascal LEDUC, hereinafter referred to as "the complainant"

The defendants:

The Federal Public Service Finance (SPF Finances), with its registered office at Boulevard du Roi Albert II, 33 (box 1) – 1030 Schaerbeek, represented by Master Jean-Marc VAN GYSEGHEM, hereinafter referred to as "defendant 1"

The Public Service Y2, hereinafter referred to as "defendant 2"

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024.

In accordance with Article 56 of the Law of December 25, 2023, it applies only to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

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The Regional Public Service of Brussels Taxation (Bruxelles Fiscalité), with its registered office at Place Saint-Lazare, 2 – 1210 Saint-Josse-ten-Noode, represented by Masters Tom DE CORDIER and Thomas DUBUISSON, hereinafter referred to as "defendant 3"

The Public Service of Wallonia Taxation (SPW Fiscalité), with its registered office at Avenue Gouverneur Bovesse, 29 – 5100 Jambes, represented by Mr. Stéphane GUISSSE, hereinafter referred to as "defendant 4"

I. Facts and Procedure

1. On July 8, 2020, the complainant filed a complaint with the Data Protection Authority against the defendants.

2. The facts underlying the complaint denounce the sending of correspondence related to the management of companies whose liquidation has been assigned to certain curators at their private addresses, rather than at their professional addresses.

3. On July 10, 2020, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62,

§ 1 of the LCA.

4. On August 7, 2020, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was sent to the Inspection Service, along with the complaint and the inventory of documents.

5. On August 30, 2021, the investigation by the Inspection Service was concluded, the report was attached to the file, and it was forwarded by the General Inspector to the President of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).

The report contains preliminary remarks, which can be summarized as follows:

I. The Inspection Service decided to investigate defendant 1 ("Data Controller A"), defendant 3 ("Data Controller B"), and defendant 4 ("Data Controller C");

II. The Inspection Service decided not to investigate defendant 2 – despite the complaint also being directed against it – as it did not find this necessary or appropriate;

III. In accordance with the complainant's request, the Inspection Service decided not to consider the documents related to the correspondence issued by the Vilvoorde-Malines Police and the Brussels Public Prosecutor's Office, as it was understood that these documents were mistakenly attached to its complaint form. Therefore, these documents were not transferred to the Body

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regarding the control of police information which appeared, upon initial analysis, to be the competent authority for their review.

The report contains findings related to the subject of the complaint and concludes that:

I.
Defendant 1 failed to comply with the principle of accuracy (Article 5.1.d) GDPR) as it is understood that he regularly sent "letters to the curators at an address considered inaccurate given the purpose of the sending";

II.
Defendant 1 committed the following dual breach:

a) He failed to comply with Articles 5.1.a) and 6.1.e) of the GDPR in that he did not demonstrate that the collection of the private address of the curators through the National Register was necessary for the execution of the public interest missions entrusted to him, and that, by extension, the processing was lawful;

b) And he failed to comply with the National Register law and the authorization granted under the Royal Decree of September 27, 1984, in that he did not demonstrate that the consultation and collection of data related to the complainants that he carried out through the National Register were necessary for the execution of his tasks.

III.
Defendant 1 committed the following dual breach:

a) He failed to comply with Articles 5.2, 24, and 25 of the GDPR in that, although he implemented technical and organizational measures to ensure the principle of accuracy of personal data, he did not establish measures to regularly verify their effectiveness, which proved ineffective in this case;

b) And he failed to comply with Articles 5.1.a), 6.1.c), 24, and 25 of the GDPR in that he did not demonstrate having implemented technical and/or organizational measures that restricted access to the National Register to only necessary purposes.

IV.
Defendant 3 failed to comply with Article 5.1.d) of the GDPR in that he sent letters to the concerned curators at addresses considered inaccurate regarding the purpose of the sending;

V.
Defendant 3 committed the following dual breach:

a) He failed to comply with Articles 5.1.a), 6.1.c), and 6.1.e) of the GDPR in that he did not demonstrate that the collection of the private address of the curators through the National Register was necessary for the execution of the public interest missions entrusted to him, and that, by extension, the processing was lawful;

b) And he failed to comply with the National Register law and the authorizations granted in that he did not demonstrate that the consultation and collection of data related to the complainants that he carried

out through the National Register were necessary for the execution of his tasks.

VI.

Defendant 3 committed the following dual breach:

- a) He failed to comply with Articles 5.1.d), 5.2, 24, and 25 of the GDPR in that he was unable to demonstrate the appropriateness of the technical and organizational measures he implemented;
- b) And he failed to comply with Articles 5.1.a), 6.1, 24, and 25.1 of the GDPR in that he did not demonstrate having implemented technical and organizational measures aimed "at limiting access and the collection of the private address of the curator through the National Register."³

VII.

Defendant 4 failed to comply with Article 5.1.d) of the GDPR by "regularly sending letters to the curators at an address considered inaccurate given the purpose of the sending."⁴

VIII.

Defendant 4 committed the following dual breach:

- a) He failed to comply with Articles 5.1.a), 6.1.c), and 6.1.e) of the GDPR in that he did not demonstrate that the collection of the private address of the curators through the National Register was necessary for the execution of the public interest missions entrusted to him, and that, by extension, the processing was lawful;
- b) And he failed to comply with the National Register law and the authorizations granted in that he did not demonstrate that the consultation and collection of data related to the complainants that he carried out through the National Register were necessary for the execution of his tasks.

IX.

Defendant 4 committed the following dual breach:

- a) He failed to comply with Articles 5.1.d), 5.2, 24, and 25 of the GDPR in that he was unable to demonstrate the appropriateness of the technical and organizational measures he implemented;
- b) And he failed to comply with Articles 5.1.a), 6.1, 24, and 25.1 of the GDPR in that he did not demonstrate having implemented technical and organizational measures aimed at "limiting access and the collection of the private address of the curator through the National Register."³.

2 Investigation report, p. 34.

3 Investigation report, p. 67.

4 Investigation report, p. 74.

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aimed at limiting access to and the collection of personal data contained in the National Register "to what is strictly necessary for the authorized purpose."⁵

The report also includes findings that go beyond the scope of the complaint. The Inspection Service finds, in broad terms, that:

X.

Defendant 1 has violated Article 5.1.d) of the GDPR by processing the private address of a judicial liquidator in the context of a case related to a judicial dissolution, whereas, given the purpose of the sending, it was required to process only the professional address of the judicial liquidator;

XI.

Defendant 3 has violated Article 30.1 read in conjunction with Article 30.4 of the GDPR in that its processing register does not include all the information that should be present, and it has also not provided "all the necessary information enabling the Supervisory Authority to understand the register and the information derived from it."⁶;

XII.

Defendant 4 has violated Article 5.1.c) of the GDPR by processing personal data relating to a curator when such data was not necessary to achieve the intended purpose, namely the establishment of an emergency procedure aimed at training staff members;

XIII.

Defendant 4 has violated Article 30.1 read in conjunction with Article 30.4 of the GDPR in that its processing register does not include all the information that should be present, and it contains inconsistencies.

The report finally includes contextual considerations summarized as follows:

I.

Although the complainant filed the complaint as the syndic of the French-speaking curators of Belgium, he nonetheless demonstrates sufficient interest to file his complaint on behalf of the French-speaking curators of Belgium, given that this falls within the scope of his activities. In any case, the complainant has also had his personal data processed by defendants 1 and 4, thus making him a data subject himself;

II.

Public authorities constitute a priority sector for the APD⁷ and have, by their status, a role to exemplify regarding compliance with legislation on the protection of personal data – all defendants investigated by the Inspection Service being public authorities;

5 Investigation report, p. 87.

6 Investigation report, p. 97.

7 APD, Strategic Plan 2020-2025 accessible via the following link:

<https://www.autoriteprotectiondonnees.be/publications/plan-strategique-2020-2025.pdf>.

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III.

The processing of personal data carried out by defendant 1 constitutes a regular practice and has, for the most part, been carried out in 2020 and 2021, even though (i) he has been informed on several occasions that he was processing private addresses of multiple curators by those very curators, (ii) this processing has been reported to the Commission for the Protection of Privacy – the legal predecessor of the APD – and, (iii) the processing continued despite the intervention of the Inspection Service;

IV.

The processing of personal data by defendant 3 continued despite several internal reports regarding the situation. However, defendant 3 indicates that it has focused on the problem and wishes to resolve it by implementing new measures, given that the existing system related to data processing is recognized as inadequate by defendant 3 itself. Finally, no evidence seems to demonstrate that defendant 3 continued the disputed processing after the intervention of the Inspection Service;

V.

The processing of personal data by defendant 4 constitutes a regular practice and continued after the intervention of the Inspection Service, which informed him of the filing of a complaint against him. Defendant 4 acknowledges that the situation is not compliant with the GDPR but expresses the intention to resolve this issue.

6.

On December 9, 2021, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case may be addressed on the merits.

7.

On the same date, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for the receipt of responses from each of the defendants has been set for January 20, 2022, that for the complainant's reply for February 10, 2022, and that for the defendants' rejoinders for March 3, 2022.

8.

The parties are invited to defend themselves regarding the findings and grievances retained by the Contentious Chamber:

- The defendants' compliance with the principle of accuracy, considering the purpose of the processing, in accordance with Article 5.1.d) of the GDPR;
- The lawfulness of the defendants' processing of the private address of the curators, in the correspondence sent to them, in the context of managing bankruptcy cases, in accordance with Articles 5.1.a) and 6 of the GDPR;

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The defendants' compliance with the obligation to implement appropriate technical and organizational

measures in accordance with Articles 5.2, 24, and 25 of the GDPR;

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The lawfulness of the defendants' collection of the private addresses of the curators through access to the national register of natural persons in accordance with Articles 5.1.a) and 6 of the GDPR and the law of August 8, 1983 organizing a national register of natural persons.

9.

On the same day, defendant 4 agrees to receive all communications related to the case electronically.

10.

On December 13, 2021, defendant 1 agrees to receive all communications related to the case electronically. She requests a copy of the file (Art. 95, § 2, 3° LCA) in the same email, which is sent to her on December 16, 2021.

11.

On December 14, 2021, defendant 3 agrees to receive all communications related to the case electronically. She requests a copy of the file (Art. 95, § 2, 3° LCA) in the same email, which is sent to her on December 16, 2021.

12.

On December 21, 2021, defendant 2 agrees to receive all communications related to the case electronically. She requests a copy of the file (Art. 95, § 2, 3° LCA) in the same email, which is sent to her on December 22, 2021.

13.

On December 21, 2021, defendant 3 requests an extension of the deadlines for submissions, which all parties had agreed upon in advance.

14.

On January 4, 2022, the Contentious Chamber accepts the extension of the deadlines for submissions. The new deadline for the receipt of responses from each of the defendants has been set for February 3, 2022, the deadline for the claimant's reply submissions for February 24, 2022, and the deadline for the defendants' rejoinders for March 17, 2022.

15.

On January 10, 2022, the Contentious Chamber receives the response submissions from defendant 4. These submissions also contain defendant 4's reaction regarding the findings of the Inspection Service that go beyond the scope of the complaint. In summary, here is what defendant 4 defends:

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He sends letters to the curators in order to fulfill his legal obligation, which consists of the collection and recovery of Walloon taxes when the company liable for the tax is in bankruptcy. This legal obligation arises from the decree of May 6, 1999, relating to the establishment, collection, and litigation regarding Walloon regional taxes;

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In practice, and given the volume of letters he must send, defendant 4 has implemented an automated system for this purpose. The letters are generated by applications. These applications retrieve the contact data of the debtors via defendant 4's person signaling application, named "eSigna." The problem encountered in this case, which led to letters being sent to the private addresses of the curators instead of their professional addresses, stems from the fact that on the website of the Crossroads Bank for Enterprises (hereinafter "BCE"), the curators involved in this case were registered with their national registration number. Thus, the "BCE" website, in response to identification requests from the debtor of the "eSigna" software, responded with the national registration number of the concerned curator and not their business number. Furthermore, the letter was then automatically sent to the private address of the concerned curator and not their professional address;

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He notes that an emergency procedure was implemented in March 2021 to manually address the problem mentioned below, pending the modification of his computer program. Subsequently, his IT service provider modified his computer program, notably by creating a "global correspondence list between the RN8 number of the agent, their business number, and their professional address." This list was then inserted into his "eSigna" application. Defendant 4 emphasizes that this work proved to

be colossal and resolves the issue arising from the present case, given that eSigna automatically links the national registration number to the business number and then uses the professional address of the company's liable agent instead of the private address. The results are said to be conclusive, and the update work has continued for ongoing improvement.

16.

On January 31, 2022, the Contentious Chamber receives the response submissions from defendant 2. In summary, here is what defendant 2 defends:

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Following the investigation report which concluded that no investigation had been conducted regarding defendant 2 (see point 5), he considers that there is no need to rule on any of the grievances expressed in the letter by which the Contentious Chamber invited the parties to submit their conclusions, and that no violation of the GDPR could be attributed to him.

17.

On February 2, 2022, the Contentious Chamber receives the response submissions from defendant 1. These submissions also contain defendant 1's reaction regarding the findings of the Inspection Service that go beyond the scope of the complaint. It is understood that defendant 1 has submitted additional and summary conclusions, and the summary of his argumentation is found in point 21.

8 National Register.

9 Submissions of defendant 4, p. 2.

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18.

On the same day, the Contentious Chamber receives the response conclusions from Defendant 3. These conclusions also contain Defendant 3's reaction regarding the findings of the Inspection Service that go beyond the subject of the complaint. It is understood that Defendant 3 has submitted summary conclusions, and the summary of their arguments is found in point 20.

19.

On February 24, 2022, the Contentious Chamber receives the reply conclusions from the complainant. In summary, here is what they defend:

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Regarding the admissibility of the complaint, the complainant indicates, on the one hand, that the erroneous reference to a provision of the GDPR does not affect the admissibility of the complaint, as the judge or the competent authority can "substitute the erroneous reference with a qualification more in accordance with the law"¹⁰, and, on the other hand, that the SPL having already declared the complaint admissible, it is no longer for the Contentious Chamber to rule on this point. As for this last argument, the complainant adds that any person demonstrating sufficient interest can file a complaint, even if that person is not directly concerned by the processing denounced. In this case, the complainant considers that Master X, having filed the complaint in his capacity as syndic of the Francophone College of Curators of Brussels¹¹, undeniably justified an interest in acting since the complaint aimed at preserving the rights and freedoms of the members of the association of which he was the syndic at the time of filing the complaint. Furthermore, the complainant notes in their conclusions that Master X himself was affected by the processing denounced in the present complaint, as evidenced by the investigation report. In any case, the complainant specifies that Master X is still a party to the case in this instance;

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The complainant notes that under Article XX.118 of the Code of Economic Law (hereinafter "CEL"), any legal citation addressed to the registered office of the bankrupt company, and not to the curator assigned to the bankrupt company by the court, is null or at least unenforceable against the estate. Therefore, the complainant points out that any third party wishing to assert their rights in the context of a bankruptcy must properly address the designated curator and must necessarily know the identity and contact details of the latter. The complainant adds that Article XX.122 of the CEL states that curators are chosen by the commercial court. The list of lawyers registered with the French Bar Association of Brussels and the Bar Association of Nivelles is included in online directories. In each of these

10 Reply conclusions of the complainant, p. 4.

11 In an email dated December 9, 2021, Master X informed the Contentious Chamber that his mandate as syndic of the College of Francophone Curators of Brussels ended on August 31, 2021. Since then, it is Master Z who holds this position.

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directories would include: "the name of the lawyer, the date of his registration for the internship, the date of his registration on the Roll if applicable, the address of his office as well as a contact email address." 12. The complainant further specifies that the name and professional address of the appointed curator are stated in the bankruptcy declaratory judgment – this being published in the Belgian Official Gazette pursuant to Article XX.107 of the CDE, in order to inform third parties. Finally, the complainant notes that Defendant 1 acknowledged in his response that bankruptcy judgments were systematically communicated to him. Therefore, the complainant concludes that Defendant 1 is fully informed of the professional address of the concerned curator;

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Regarding the grievance related to the principles of legality, accuracy, and data minimization, the complainant first recalls that the defendants each had the necessary information to contact the concerned curators, and thus, the collection and use of the private addresses of the curators cannot constitute relevant processing. The complainant specifies in this regard that curators are appointed for the management of bankrupt companies in their personal capacity, but not in a private capacity. The complainant continues his argument by noting that the defendants addressed the concerned curators in their capacity as judicial representatives, and not as individuals subject to personal income tax or corporate tax, and that consequently, they should have addressed the curators regarding the bankrupt companies assigned to them in compliance with the provisions of Articles XX.107 and following of the CDE, that is to say, by using the address listed in the relevant bankruptcy judgments and in the bankruptcy notice published in the Belgian Official Gazette, otherwise any notification, service, or communication made would be unenforceable against the estate, including the concerned curator. Finally, the complainant considers that it is erroneous for Defendant 1 to rely on the law of August 15, 2012, concerning the creation and organization of a federal service integrator (hereinafter "law of August 15, 2012") read in conjunction with the law of May 5, 2014, guaranteeing the principle of unique data collection in the operation of administrative services and bodies (hereinafter "law of May 5, 2014") to justify the use of the private address of the concerned curators for sending letters related to bankruptcies assigned to them. According to the complainant, the objective of the law of August 15, 2012 is solely to "guarantee a unique collection of relevant data for public services in the execution of the missions entrusted to it, in the interest of the persons concerned, with the aim of preventing this relevant information from being requested again from the person concerned when it is already available from an authentic source."

12 Complainant's reply conclusions, p. 6.

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to which the participating public service has access. »13. More specifically, and while joining the interpretation made by Defendant 1 regarding the obligation to use an authentic source arising from the law of August 15, 2012, this would only mean that "when the data necessary for its processing is taken from an authentic source, the participating authority cannot collect it from another authority or from the individuals concerned."14. However, these provisions are, according to the complainant, not relevant in the present case, given that the ECB – where Defendant 1 collected the private address of the concerned curators – does not include the professional address of lawyers within the meaning of Article XX.122 of the CDE, but only the address of their establishment unit if they operate as a natural person and have indeed declared this address – otherwise, the ECB only includes the private address of the lawyer in question. Furthermore, the complainant adds that Defendant 1 would himself acknowledge in his response conclusions that the ECB does not constitute an authentic source of data regarding the identification data of the curators designated in the context of bankruptcies. Therefore, the complainant states "that [Defendant 1] cannot refuse to use exclusively the only relevant contact data appearing in the bankruptcy judgments or official bankruptcy notices to which he acknowledges

having access on the grounds that encoding this data would impose too great a workload on his services.”¹⁵. Next, the complainant argues that it is the responsibility of Defendant 1, in his capacity as data controller, to ensure compliance with the principles and rights set forth by the GDPR, which has direct effect in the Belgian legal order and is hierarchically superior to national legislations such as the laws of August 15, 2012, and May 5, 2014, mentioned earlier. In any case, the complainant contests Defendant 1's argument expressing the idea that the use of the private address of the concerned curators would result from the fact that they had not properly declared their establishment unit to the ECB despite being obligated to do so. In this regard, he attaches an annex that would demonstrate that several curators who have properly declared their establishment unit to the ECB would still have received correspondence from the defendants regarding the liquidations assigned to them;

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Regarding the grievance related to the principle of accountability and the rules of data protection by default and by design referred to in Articles 5.2, 24, and 25 of the GDPR, the complainant first joins the investigation report in that it results that neither Defendant 1 nor Defendant 3 contest the inadequacy of the use of

13 Complainant's reply conclusions, p. 7.

14 Complainant's reply conclusions, p. 8.

15 Complainant's reply conclusions, p. 8.

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the private address of the concerned curators in the context of the management of the bankruptcies assigned to them, that the corrective measures subsequently implemented internally are not of a nature to remedy in a sustainable and definitive manner the problems encountered in the present case, and that, ultimately, it is appropriate to join the findings made by the Inspection Service in that defendants 1, 3, and 4 would have failed to comply with Articles 5.2, 24, and 25 of the GDPR;

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The complainant requests that this decision issue a compliance order accompanied by a penalty against the defendants. Regarding the latter, the complainant alleges that the penalty is distinct in nature from the administrative fine – both being provided for by Article 100 of the LCA. It is understood that according to the complainant, the penalty does not constitute a sanction, but rather an incentive to comply with the main ruling, thus the penalty can be imposed against a public authority, unlike the administrative fine.

20. On March 17, 2022, the Contentious Chamber receives additional and summary conclusions from defendant 3. In summary, here is what it defends:

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The complaint would not meet the admissibility conditions expressed by Articles 57.1 and 77 of the GDPR, 58 and 60 of the LCA, and 220 of the framework law, given that the complainant titles the processing denounced in the present case as follows: "the use of the private address rather than the professional address of the French-speaking curators of Brussels" but ties it to Article 39 of the GDPR, which seems unrelated to defendant 3;

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The complainant would not demonstrate a sufficient interest to act. On the one hand, defendant 3 reproaches the complainant for not having further justified his interest to act since he limited himself to saying that he acted as the syndic of the college of French-speaking curators of Brussels, and for the Inspection Service not having verified the syndic activities of the complainant. In this regard, defendant 3 adds that the complainant has not been duly mandated for this purpose. On the other hand, defendant 3 points out an ambiguity. Indeed, he notes that in the complaint form, the complainant indicates acting as the syndic of the college of French-speaking curators of Brussels, while the Inspection Service states in its investigation report that the complainant acts as the syndic of the college of French-speaking curators of Belgium;

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He notes that at the end of the Inspection Service's investigation, several of its internal management services recommended to its Management Committee to act urgently regarding the issue raised by the

complainant and on which the SI specifically investigated – which the Management Committee followed;

- Regarding the technical aspects of the case, defendant 3 wishes to provide context. He first recalls that the BCE is the authentic source concerning data related to companies. In the BCE, the following data are listed: "(i) the identity of the curator of the company, (ii) the name, (iii) first name, (iv) and the RN number." The defendant 3 then states that the BCE does not mention all the other data whose publication in the Belgian Official Gazette is nevertheless mandatory under Article XX.107, para. 2, 4° of the CDE, namely the postal and electronic addresses of the concerned curators. He specifies that he receives from the BCE "the data not accessible without prior authorization referred to in Article III.30 of the CDE (i.e., the RN number)," and this in the form of an XML file, in an automated manner. Defendant 3 concludes that, contrary to what the complainant would assert, he does not conduct searches through the RN;

- Regarding the factual elements of the case, defendant 3 notes that the breaches attributed to him could not have persisted for more than 10 years, given that he only became a fully-fledged regional public service on January 1, 2017. Then, he notes that according to the investigation report, only 28 problematic cases would have been identified among 603 curators between November 29, 2019, and February 25, 2021. Defendant 3 concludes that this represents only a small percentage, and that these cases – isolated – do not stem from a "deliberate intention to circumvent the legislation on the protection of personal data, including the GDPR."

- Regarding the grievance related to the principle of accuracy (Art. 5.1.d of the GDPR), defendant 3 claims to have implemented a system to automate tax procedures, and that this system loaded the identification and primary residence data of the RN of the concerned curators in cases where a data field provides an RN number for which no information is yet available. He emphasizes that sending letters to the private address of curators regarding their professional tasks would have only occurred in a few isolated cases, and that this has ceased since the adoption of internal measures;

- Regarding the grievance related to access to the RN of the concerned curators and the unlawful processing of their private address, defendant 3 notes, first, that this is only an observation from the Inspection Service to which the Contentious Chamber...

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would not be linked. He adds that the sending of letters to the relevant curators would have only been isolated cases, and that this would have ceased following the internal measures adopted by defendant 3;

- Regarding the complaint concerning the obligation to implement appropriate measures to ensure compliance with the GDPR and the principles relating to data protection by design and by default, defendant 3 first notes that this is merely an observation from the SI to which the Contentious Chamber would not be bound. He then lists all the measures he has adopted to resolve the encountered issue. Essentially, these measures are manual in nature and occur at the time of creating a file related to an internal curator, consisting of recording the curator's professional address as the contact address. Consequently, it would not be possible to consult the curator's primary residence address recorded in the RN before this manual encoding has taken place. Furthermore, internal meetings would be organized every 6 months to verify the effectiveness of the measures implemented. He finally plans to continue adopting measures related to the processing of personal data in the future. However, he notes that he continues to receive the RN number automatically from the BCE, despite the internal measures put in place, and concludes that if there is a problem, it originates from the BCE and not from himself;

- Regarding the complaint concerning the obligation to maintain a register of processing activities, defendant 3 first notes that this is merely an observation from the SI. Furthermore, he states that he

has fully cooperated with the SI – and the APD more generally – by providing the SI with the required documents, including the register of processing activities, upon the first request. In any case, defendant 3 acknowledges that, regarding the requirement of point a) of article 30.1 of the GDPR, some information used was not up to date or was poorly referenced; in this regard, he states that he has adapted the relevant files. Moreover, concerning the requirements of points f) and g) of article 30.1 of the GDPR, defendant 3 argues that the provision of these is not mandatory, as the European legislator used the phrase that follows: "where possible." Finally, he notes that he did indeed have appropriate technical and organizational measures in two documents mentioned in the register of processing activities, but that "by mere oversight," these documents were not sent to the SI, and adds that these documents had not been specifically requested by the SI, which he believes would have been prudent;

- Defendant 3 requests, primarily, that the complaint be dismissed as inadmissible, or, at the very least, that it be declared unfounded.

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21.

On the same day, the Contentious Chamber receives additional and summary conclusions from defendant 1. In summary, here is what he defends:

- He reiterates the same arguments that defendant 3 has made regarding the investigation report, and adds that the investigation would have been conducted in a non-contradictory manner, contrary to what Professor Jacobs has notably stated following the judgments *Mantovanelli v. France* and *Cottin v. Belgium* of the European Court of Human Rights. According to defendant 1, the SI's investigation should be equated to an expert opinion in the eyes of the European Court of Human Rights, making it legitimate to question the legality of the investigation conducted in this case;

- He then states that curators are appointed in a personal capacity, which would have been acknowledged by the complainant in his conclusions, and that consequently, it is necessary to search for the address of the curator concerned, and moreover, that the latter must properly document the authentic source that can be queried by defendant 1;

- Regarding the law of August 15, 2012, and the law of May 5, 2014, defendant 1 considers that contrary to what the complainant would assert, their objective is not simply "to avoid asking the data subject for data already in the possession of public authorities but also to ensure that the data processed is accurate and complete." 20. He then reproaches the complainant for implying that he should consult multiple data sources that do not constitute authentic sources or are not listed on the Bosa website;

- In the sense of articles III.35, §1 and III.36 of the CDE, defendant 1 concludes that "participating public services must consult the BCE as an authentic source for data related to the identification of companies to the exclusion of any other non-authentic source." 21;

- It is the responsibility of companies to "communicate accurate and complete data to the BCE as well as any changes occurring during their lifetime." 22. Defendant 1 also specifies that this obligation is all the more justified since, in the case of certain curators such as Master Z, there is a contradiction between the address listed in the BCE and that appearing in the bankruptcy publication of the Belgian Official Gazette. This ambiguity thus makes his task more difficult;

20 Conclusions of defendant 1, pp. 6-7.

21 Conclusions of defendant 1, p. 8.

22 Conclusions of defendant 1, p. 10.

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- Defendant 1 concludes as follows: "The company must provide a certain number of data to the ECB at

the time of its registration but must also ensure that this data remains accurate and complete. In this sense, if it operates in a location other than the domicile for a natural person or the registered office for a legal entity, it must register the establishment unit under penalty of criminal fine. It is important to note that the curator is always designated personally and therefore as a natural person, which implies that their domicile address is their 'default' address with the ECB. If the natural person is not registered with the ECB, the SPF Finances may access, if necessary and where applicable, the RN as an authentic source.”²³;

- Regarding the consultation of the RN, Defendant 1 specifies that they have the obligation to consult the RN as an authentic source when the information sought is not included in the ECB;
 - Defendant 1 claims to have complied with the principles of accuracy and completeness by sourcing the necessary data for their processing from an authentic source – Defendant 1 cannot challenge the accuracy of the authentic data present in this source;
 - No objective element would support the assertion that the processing of the complainant's private address is unlawful, given that in the absence of communication of an establishment unit from them to the ECB, the private address is then the one available on the ECB's website. They specify that the curator has indeed been designated personally, as evidenced by the fact that their national register number was mentioned in the bankruptcy declaration judgment. In any case, Defendant 1 processes the data “for purposes related to the exercise of the public authority vested in them.”²⁴;
 - Concerning the complaint regarding the obligation to implement appropriate measures to ensure compliance with the GDPR and the principles related to data protection by design and by default, Defendant 1 asserts that they have implemented adequate technical and organizational measures, as evidenced by the use of authentic data sources. They further specify that they are in negotiations with the Order of Francophone and German-speaking Bar Associations and the Orde van Vlaamse Balies – joint controllers of RegSol – with a view to adopting a protocol²⁵ in this regard, to resolve the issues encountered in this case;
 - Defendant 1 claims that the Contentious Chamber could not impose fines against them, given that these are comparable to administrative fines (art. 83 of the GDPR) which Article 221, § 2 of the Framework Law prohibits against public authorities. Defendant 1 continues by stating that even if they could be subject to the imposition of a fine, nothing would justify it in this case;
 - Defendant 1 requests that the complaint be declared admissible but unfounded, and to recognize that they have not violated the GDPR.
22.
On November 21, 2024, the parties are informed that the hearing will take place on December 11, 2024.
23.
On December 11, 2024, the parties are heard by the Contentious Chamber.
24.
On December 18, 2024, the minutes of the hearing are submitted to the parties.
25.
On January 10, 2025, the Contentious Chamber receives no comments from the defendants regarding the minutes.
- II. Motivation
- II.1. Preliminary Considerations
- II.1.1. The Data Controllers
26.
The SI considered that it was not appropriate to investigate Defendant 2, given that the complainant indicated that the relevant curators had not recently received any correspondence from Defendant 2,

and that the information provided by the complainant did not allow for the identification of the processing at issue in this complaint.

27.

Therefore, the Contentious Chamber deems it appropriate to dismiss the complaints directed against Defendant 2 for technical reasons, given that it has no evidence to establish that they carried out the alleged processing, and to limit the examination of compliance of the processing with the GDPR and the laws relating to the protection of personal data to Defendants 1, 3, and 4.

25 The Contentious Chamber emphasizes here that on March 31, 2023, the counsel for Defendant 1 communicated to the Contentious Chamber and the other parties to the case the protocol formalized in Dutch.

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II.1.2. The interest to act

28.

The Disciplinary Chamber notes that the complaint was filed by Master X, who specified that he was acting in his capacity as "SYNDIC of the Francophone curators of Brussels." It emerges from the documents in the case as well as from the exchanges that took place during the hearing that Master X filed this complaint both to defend his rights and those of his colleagues belonging to the college of Francophone curators of Brussels. It is also asserted in the complainant's conclusions that these are "made both in the name of the College of curators as such, and in the name of its members individually, including Master X." Therefore, the Disciplinary Chamber holds that Master X has an interest to act, as the complaint aims to defend both his rights as a concerned person and the interests of each of the curator members of the College who are targeted by the reported treatments.

29.

Article 58 of the LCA provides that "Any person may file a complaint or a written request, dated and signed, with the Data Protection Authority."

30. In the preparatory works, the legislator specifies in this regard that by "any person" it should be understood: "natural persons, but also legal persons, associations, or institutions wishing to report a supposed violation of the regulation." The Disciplinary Chamber notes that the legislator does not distinguish between associations with legal personality and those without.

31.

In this case, it is undisputed that Master X's data was subject to the treatments reported in the complaint by defendants 1 and 4. Therefore, he is a concerned person regarding the challenged treatments carried out by defendants 1 and 4.

32.

His data was not processed in this regard by defendant 3; however, it emerges from the documents in the case and the investigation report that several of the Francophone curators of Brussels were subject to these personal data treatments. These curators are precisely represented by the syndic of the college of Francophone curators of Brussels, to which they belong. Furthermore, during the hearing, it was asserted that the syndic of the Francophone curators of Brussels is "a kind of representative" of the association of the college of Francophone curators of Brussels. Therefore, the complainant was entirely

26 Complaint form.

27 Complainant's reply conclusions, p. 5.

28 It is the Chamber that emphasizes this.

29 Draft law of August 23, 2017 establishing the Data Protection Authority, Explanatory memorandum, Parl. Doc., Ch. repr. sess., ord. sess. 2016-2017, no. 54-2648/1, p. 40; See also C. Cass, APD v. Verreydt, October 7, 2021, C.20.0323.N, available at: <https://juportal.be/content/ECLI:BE:CASS:2021:ARR.20211007.1N.4/FR?HiLi=eNpLtDK2qs60MrAutjI2sFJKT01PLUvNK05KL U7OSC3KzcxLL04sLck vyixJzSxRss60MoSqdHd1dw1z9Qt2cg129nAN8vX0cw92DA3xD/IMcfUMAAk0gqkkYGYtAFHdLHE=>.

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legitimate to represent the curators concerned by the treatments at issue in the present case³⁰.

33. Furthermore, the Contentious Chamber notes that the fact that the SI, in its investigation report,

repeatedly wrote that the complainant was the "syndic of the French-speaking curators of Belgium," instead of the "syndic of the French-speaking curators of Brussels," does not alter the complainant's standing to act in any way. This can only be regarded as a clerical error, which does not have any particular consequence regarding the examination of the complainant's interest. Master X has always presented himself as the syndic of the French-speaking curators of Brussels. Moreover, there is no evidence of the existence of a college of French-speaking curators of Belgium (defendant 3 specifically claims that this body does not exist³¹), let alone that Master X could have been the syndic of this body. The Contentious Chamber has also found no trace of the existence of a possible college of French-speaking curators of Belgium. Therefore, contrary to what defendant 3 argues, there is no ambiguity regarding whether Master X acted as syndic of the French-speaking curators of Belgium or Brussels; based on the elements stated above, there is no doubt that Master X acted as syndic of the French-speaking curators of Brussels. In any case, the complainant should not suffer the consequences of a clerical error by the Inspection Service.

II.1.3. Complaint Form

34. Defendant 3 also points out that, in the complaint form, the complainant referenced Article 39 of the GDPR, which would be unrelated to the facts reported, and that, for this reason, the complaint should be declared inadmissible.

35. This argument is not relevant.

36. The Contentious Chamber is not bound by the legal qualification that a complainant may give to the disputed facts they report. On the contrary, it has the duty to correctly qualify in law the facts reported by the complainant³². In this regard, the LCA provides that the conditions for the admissibility of the complaint require that it contains "a statement of the facts and the necessary indications to identify the treatment to which it pertains"³³, but in no way

30 See in this sense the judgment of the Brussels Court of Appeal (Chamber 19A, Market Court section) of February 16, 2022, 2021/AR/1363, point 22, accessible via: <https://www.autoriteprotectiondonnees.be/publications/arret-du-16-fevrier-2022-de-la-cour-des-marches-ar-1363.pdf>.

31 Summary conclusions of defendant 3, paragraph 10.

32 Provisional judgment of the Brussels Court of Appeal (Chamber 19A, Market Court section) of June 8, 2022, 2021/AR/606, point 5, accessible via: <https://www.autoriteprotectiondonnees.be/publications/arret-du-8-juin-2022-de-la-cour-des-marches-ar-606.pdf>.

33 Article 60, paragraph 2 of the LCA:

"A complaint is admissible when it:

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since it only provides that in order to be admissible, the complaint must also correctly qualify the reported facts in law.

37.

In any case, complaint forms should be interpreted broadly and flexibly, so as to allow the concerned individuals or those demonstrating sufficient interest to assert the rights they – or the individuals they represent – enjoy under the GDPR, but also to enable the DPA to effectively carry out its supervisory mission³⁴.

II.1.4. On the investigation

38. The Contentious Chamber emphasizes that procedural guarantees must be fully respected, and if there had been a risk that the defendants were disadvantaged by the manner in which the investigation report was prepared, this disadvantage has been completely eliminated thereafter³⁵, which excludes any violation of the principles of good administration. The procedural elements raised by defendants 1 and 3 do not result in a violation of the rights of the defense, as defendants 1 and 3 had the opportunity to present their arguments in full through their submissions and were also able to fully exercise their right to contradiction during the hearing of the Contentious Chamber. Therefore, defendants 1 and 3 have not suffered any prejudice, and their rights of defense have thus been properly respected.

39. It should be noted that decisions of the Contentious Chamber are subject to appeal before the Market Court, in accordance with Article 108 of the LCA. This provision states that: "An appeal may be

lodged against the decisions of the Contentious Chamber under Articles 71 and 90 before the Market Court, which handles the case in accordance with the procedures for summary proceedings in accordance with Articles 1035 to 1038, 1040 and 1041 of the Judicial Code."

40. This appeal mechanism ensures judicial review of the decisions of the DPA³⁶. The Market Court, as a judicial authority, examines the decisions of the DPA within the framework of its full jurisdiction, allowing for a thorough review both factually and legally.

- is drafted in one of the national languages;
- contains a statement of facts and the necessary indications to identify the processing it concerns;
- falls under the jurisdiction of the Data Protection Authority. ».

34

See in this sense C. Cass, DPA v. Verreydt, October 7, 2021, C.20.0323.N, available at: <https://juportal.be/content/ECLI:BE:CASS:2021:ARR.20211007.1N.4/FR?HiLi=eNpLtDK2qs60MrAutjI2sFJKT01PLUvNK05KL U7OSC3KzcxLL04sLckvyixJzSxRss60MoSqdHd1dw1z9Qt2cg129nAN8vX0cw92DA3xD/I McfUMAak0gqkkYGYtAFHdLHE=>.

35 See in this regard Decision of the Contentious Chamber 18/2020 of April 28, 2020; Decision of the Contentious Chamber 71/2020 of October 30, 2020; Decision of the Contentious Chamber 133/2021 of December 2, 2021 and Decision of the Contentious Chamber 38/2023 of March 27, 2023.

36 Brussels Court of Appeal, Market Court Section, 19th Chamber A, Chamber of the Market Court, 2019/AR/741, June 12, 2019, p. 10.

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41.

It is important to note that this appeals system helps to ensure respect for the fundamental principles of good administration and the rights of the defense throughout the procedure, from the initial administrative phase to the potential judicial phase.

II.2. On the Merits of the Case

II.2.1. Preliminary Considerations

42.

Within the Belgian federal public sector, administrations are structured in interconnected networks, and the principle of unique data collection prevails.

43.

Among the administrations that largely constitute these networks, some are classified as "authentic data sources." Article 2, 6° of the law of August 15, 2012, concerning the creation and organization of a federal service integrator defines an authentic data source as a "database in which authentic data is stored." Authentic data is defined as data "collected and managed by an entity in a database and which serves as the unique and original data concerning the person or legal fact in question, so that other entities no longer need to collect the same data." Thus, the determination of the authentic nature of authentic data relates not so much to its nature as to the manner in which it "is collected, stored, and made accessible."³⁷ Furthermore, it should be noted that the term "authentic" within the framework of the aforementioned law is an autonomous concept, and is therefore independent of the meaning that may be attributed to it by other legislative texts.

44.

Within each network, there exists a service integrator. Vertical service integrators are distinguished from horizontal service integrators.

45.

Article 2, 1° of the aforementioned law defines a service integrator as "an institution that, by or under a law, is responsible for the integration of services at a level of government or in a specific sector." This institution is generally public, but this is not necessarily always the case. The Belgian legislator had in mind³⁹ the order of lawyers or the chamber of notaries, which constitute service integrators while being private institutions. Notwithstanding this, the mission pursued by service integrators always falls within the public interest.

46.

In summary, each piece of data is collected only once from citizens. Once the data is collected, no

public institution can request the same data again.

37 Draft law of May 31, 2012, concerning the creation and organization of a federal service integrator, Explanatory Memorandum, Parl. Doc., Ch. repr., ord. sess. 2011-2012, no. 53-2223/1, p. 17.

38 Service integrators are sometimes also referred to as "Trusted third parties."

39 Draft law of May 31, 2012, concerning the creation and organization of a federal service integrator, Explanatory Memorandum, Parl. Doc., Ch. repr., ord. sess. 2011-2012, no. 53-2223/1, p. 16.

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given to the concerned citizen. As soon as a public institution requires a specific piece of data relating to a citizen who has already been subject to data collection, it must then collect it from an authentic data source. The service integrator acts as an intermediary between the administration and the authentic data source, as it is the integrator who requests the data needed by the administration from the authentic data source. Thus, from the administration's perspective, this constitutes an indirect data collection.

47.

This structuring aims to harmonize data exchange among different public services, thereby ensuring that data is "adequate, relevant, accurate, not excessive, and, if necessary, updated."

48. Within the Belgian federated public sector, the Contentious Chamber also notes the existence of the ordinance of May 8, 2014, establishing and organizing a regional service integrator (hereinafter "ordinance of May 8, 2014") and the ordinance of July 17, 2020, guaranteeing the principle of unique data collection in the operation of services and bodies that fall under or execute certain missions for the authority, and concerning the simplification and harmonization of electronic and paper forms (hereinafter "ordinance of July 17, 2020") which impose, at least concerning the aspects related to the present file, a legal regime *mutatis mutandis* similar to that presented above regarding federal public authorities. As these are ordinances, they therefore apply to the authorities of the Brussels-Capital Region.

49. The Contentious Chamber notes that there is no normative text within the Walloon regional sector regarding the principle of unique data collection. However, the Contentious Chamber takes into account that this constitutes one of the priorities outlined by the Walloon Government in its Regional Policy Declaration for the 2024-2029 legislature.

II.2.2. Regarding the principle of accuracy (Article 5.1.d of the GDPR) and technical and organizational measures from the design stage and by default (Articles 5.2, 24, and 25 of the GDPR)

50. Article 5.1.d) of the GDPR provides that personal data subject to processing must be "accurate and, where necessary, kept up to date; all measures

40 Article 2 of the law of May 5, 2014: "This law aims to reduce the administrative obligations of citizens and legal entities by guaranteeing them that data already available in an authentic source will no longer need to be communicated again to a federal public service and aims to completely assimilate electronic forms and paper forms."; Article 8, § 3 of the law of August 15, 2012 (as amended by Article 13 of the law of May 5, 2014): "Participating public services that have direct access to an authentic source reuse the data available in that source and can no longer request it from the interested party, nor from their agent or legal representative."

41 Draft law of May 31, 2012, concerning the creation and organization of a federal service integrator, Explanatory memorandum, Parl. Doc., Ch. repr., ord. sess. 2011-2012, no. 53-2223/1, p. 29.

42 Walloon Government, Walloon Regional Policy Declaration: Having the courage to change for a brighter future, July 11, 2024, page 10

<https://www.wallonie.be/sites/default/files/2024-07/DPR2024-2029.pdf>.

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Reasonable measures must be taken to ensure that personal data which is inaccurate, in relation to the purposes for which it is processed, is erased or rectified without delay (accuracy). In practical terms, this measure of accuracy translates into specific guarantees which include the rectification of data, the erasure of data that is inaccurate and no longer necessary in relation to the purposes for which it was collected, or the limitation of processing for a period allowing the data controller to verify the accuracy of the personal data. An additional component of the principle of accuracy, the updating

of data takes on a much more practical aspect. As soon as an opportunity for updating arises, the data controller must seize it. The principle of accuracy thus establishes an obligation of means, since at the moment a data controller is informed that they are processing inaccurate personal data in light of the pursued purposes, they must take all reasonable measures to correct it, and this "without delay."

51. The aim of this principle is to combat outdated data, the use of which may be irrelevant or even harmful to the data subject.

52. In its judgment in *Nowak*, the Court of Justice of the European Union (hereinafter "CJEU") clarified how compliance with this principle should be assessed: "the completeness and accuracy of personal data must be assessed in light of the purpose for which that data has been collected." This implies that the data controller must adopt reasonable measures to ensure the accuracy of the personal data they process. Compliance with this principle is assessed with varying degrees of severity depending on the effects that the processing of inaccurate data may have on the rights and interests of the data subject.

53. Article 5.2 of the GDPR provides that the data controller is required to comply with the principles of personal data protection – which include the principle of data accuracy – and the obligations imposed on them by the GDPR, and must be able to demonstrate that these are respected (principle of accountability). Furthermore, they must do everything necessary to this end, including reviewing and updating the measures put in place if necessary, pursuant to Article

43 GDPR, art. 16.

44 GDPR, art. 17.1.a).

45 GDPR, art. 18.1.a).

46 G. HAAS, *Legal Guide to the GDPR: Regulation on the Protection of Personal Data*, 3rd ed., ENI Edition, 2022, pp. 86-89.

47 C. DE TERWANGNE, "The Principles Relating to the Processing of Personal Data and Its Lawfulness," in *The General Data Protection Regulation (GDPR) – In-Depth Analysis* (ed. by C. DE TERWANGNE and K. ROSIER), Brussels, 2018, p. 111.

48 CJEU, judgment of December 20, 2017, *Nowak v. Data Protection Commissioner*, case C-434/16, ECLI:EU:C:2017:994, para. 53.

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24 of the GDPR. Indeed, the principle of accountability requires not only compliance with the processing principles but also the ability to demonstrate compliance at any time. To this end, the data controller must document the legal bases invoked, the purposes, the necessity assessments, and the control measures implemented. A posteriori demonstration cannot substitute for the absence of a proactive data management policy compliant with Article 24 of the GDPR.

54. Furthermore, the data controller must ensure that the personal data they process is accurate in relation to the purposes pursued from the design stage and by default pursuant to Article 25 of the GDPR.

55. In this regard, it is useful to mention that among the key elements for data protection by design and by default that the European Data Protection Board (hereinafter "EDPB") relates to the principle of accuracy, the sources of data are listed as the first element, which "should be reliable regarding the accuracy of the data."⁴⁹ Moreover, the EDPB also takes into account the verification of data and the maintenance of accuracy.

56. Consequently, data controllers have a duty of vigilance and are required to verify that the authentic source of data they use is appropriate for the intended processing purpose. In particular, data controllers must be attentive to the architectural evolution of Belgian E-government and the potential emergence of a new authentic data source.

57. Data controllers must ensure to integrate mechanisms that limit access to data to what is strictly necessary, both in terms of quantity and quality of data. Compliance with Article 25 of the GDPR implies the existence of documented and verifiable measures. Formal compliance with an access obligation is not sufficient if the concrete modalities of processing do not reflect this minimization.

58. Recital 78 of the GDPR states that the principle of data protection by design and data protection by default must be taken into account when awarding public contracts, thus reminding public authorities of their duty of exemplary conduct.

59. Finally, the Contentious Chamber adds that at the end of its judgment of August 1, 2022, the CJEU concludes that it is appropriate "to emphasize that the lack of resources allocated to public authorities cannot in any way constitute a legitimate reason justifying an infringement of the fundamental rights guaranteed by the Charter [of Fundamental Rights of the European Union].

49 EDPB, Guidelines 4/2019 on Article 25 – Data Protection by Design and by Default, version 2.0, adopted on October 20, 2020, point 79, accessible via: https://www.edpb.europa.eu/system/files/2021-04/edpb_guidelines_201904_dataprotection_by_design_and_by_default_v2.0_fr.pdf.

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European] »50 – such as the right to the protection of personal data guaranteed by Article 8 of the Charter.

60. In this case, Defendant 1 states that it did not act in disregard of the principle of accuracy, understanding that by connecting to the BCE – an authentic source of data – it ensures that the data obtained is accurate and complete. It adds that, not being the manager of this authentic source, it has no duty to ensure corrections in case of error. Nearly 10,000 bankruptcies have been reported on average each year over a period from 2009 to 2020 inclusive. If Defendant 1 were to manually encode all of this, this alone would represent a colossal workload, which would therefore be unreasonable to require in light of Article 25 of the GDPR.

61. Furthermore, the use of the automated system also helps to reduce the risk of errors that could result from accidental mistakes by the individuals tasked with this mission.

62. Defendant 3 notes that the errors were produced due to its internal automated programming. Indeed, it claims that the computer rule followed meant that it received from the BCE several data points including the RN number of the curators, and not their business number – which led Defendant 3 to use their private addresses. However, the defendant claims to have modified its internal measures. The new system automatically blocks the consultation of the RN when the RN number is issued by the BCE. Additionally, the curator's profile is created manually, indicating the professional address of the curator, obtained following a consultation of the BCE or the Belgian Official Gazette. The profile cannot be created without this manual work. Finally, it specifies that this would have only been the case in a few isolated instances and that the problem has since been resolved.

63. Defendant 4, finally, explains that the use of the private address of the curators was caused by the fact that the BCE, in response to the inquiry made by the automated system of Defendant 4, returned to it the identification of the curator concerned by the national register number, and not by the business number, and thus Defendant 4 collected the private address of the curators.

Regarding Defendant 1

64. It appears that Defendant 1 did indeed use inaccurate personal data considering the purpose of their processing, understanding that it used the private address of curators since their professional addresses were not listed in the BCE, and that it was aware of the problems caused. However, this does not constitute a de facto breach of Article 5.1.d) of the GDPR.

50 CJEU, judgment of August 1, 2022, OT v. Vyriausioji tarnybinės etikos komisija, case C-184/20, ECLI:EU:C:2022:601, paragraph 89.

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65. Indeed, as outlined in point 50, the principle of accuracy is an obligation of means. Furthermore, since Defendant 1 is a federal public authority, it also has the duty to collect the data it needs from authentic data sources when applicable. Therefore, it is necessary to examine whether Defendant 1 has implemented all reasonable measures it was required to take in order to fulfill its obligation.

66. The Contentious Chamber notes that Defendant 1 went through one of the authentic sources available to it in order to retrieve the contact address of the curators, this authentic source being the BCE, which collects and processes the private address of, among others, any registered natural person enterprise, and subsequently communicates it to Defendant 1.

67. Regarding the BCE, it should be stated that it was the responsibility of the concerned individuals to register their professional address in the BCE, at least in cases where they practiced their profession as independents, as is notably indicated in Article XV.77 of the CDE, which imposes a level 2 sanction on all those who "are registered as [2 an enterprise subject to registration]2 and who engage in

activities or operate a business unit that are not included in the Crossroads Bank for Enterprises." Furthermore, Article III.32 of the CDE also grants a control power over all enterprises registered in the BCE, consisting of the ability to access the data recorded therein and to have it corrected if necessary. The legislator stated that this control power would be "especially important in the initial phase of the creation of the [BCE], when all existing information will be uploaded."⁵²

68. Moreover, Defendant 1 acknowledges being notified of the declaratory bankruptcy judgments issued by the Business Court, which include, among other things, the professional address of the curators.

69. In this regard, it must be clarified that Defendant 1 did not commit a fault by not relying on the declaratory bankruptcy judgments of which it was systematically notified. Indeed, although the declaratory bankruptcy judgment is an authentic act, and thus has probative force⁵³, it does not itself constitute an authentic data.⁵⁴ The Contentious Chamber recalls here, as it has explained in points 42 to 47 of the

51 Article XV.70, §1, 2° CDE: "2° the level 2 sanction consists of a criminal fine ranging from a minimum amount of 26 euros to a maximum amount of 10,000 euros or 4% of the total annual turnover of the last closed financial year preceding the imposition of the fine for which data allowing the establishment of the annual turnover are available, if this represents a higher amount;"

52 Draft law of October 9, 2002, establishing a Crossroads Bank for Enterprises, modernizing the commercial register and creating accredited business counters, Explanatory memorandum, Parl. Doc., Ch. repr., ord. sess., no. 50-2058/1, p. 25.

53 Art. 8.17, Civil Code.

54 In this regard, see point 43 of this decision concerning the autonomous nature of the term "authentic" used in the law of August 15, 2012.

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This decision states that federal public authorities must collect data related to citizens from authentic data sources when such data has already been collected by another administration; thus, the Belgian E-Government is organized.

70. However, consulting an authentic data source does not exempt the data controller from respecting the fundamental principles of the GDPR, notably those of accuracy (Article 5.1.d), minimization (Article 5.1.c), and purpose limitation (Article 5.1.b). The "authentic" nature of a data point does not imply its relevance or accuracy concerning the specific purpose of the processing envisaged by the data controller. It is therefore the responsibility of the latter to demonstrate, in each case, that the data obtained from the authentic source is not only legally accessible but also adequate, relevant, and necessary for the intended purpose (Articles 5.1.a and 6.1). Furthermore, as outlined in point 56 of this decision, the data controller should also carefully verify the appropriateness of the authentic data source they consult, considering the purpose they pursue.

71.

It follows from Article XX.131, § 1 of the CDE⁵⁵ that for each bankruptcy case, a file is created in RegSol. Among the elements that this file must necessarily contain is the "certified copy of the bankruptcy declaration judgment"⁵⁶. In its preparatory works, the legislator specified that this file is "the very heart of the procedure" and constitutes "the authentic source of bankruptcy data"⁵⁷. It should thus be understood that the bankruptcy declaration judgment present in this bankruptcy file is an authentic data point.

72.

Certainly, Article XX.15 of the CDE states that RegSol is an authentic data source for "all acts and data recorded therein."

73.

Moreover, Article XX.16 of the CDE provides that RegSol processes various categories of personal data, including "the registration address in the register of the

55 Article XX.131, § 1 of the CDE: "§ 1. The register contains for each bankruptcy, a file containing at least the following elements:

1° a certified copy of the bankruptcy declaration judgment, the judgment fixing the date of cessation of

payments, and the decisions rendered on appeals against these judgments;

2° the extracts of the publications referred to in this title;

3° the orders issued by the supervising judge;

4° where applicable, the minutes of the site visit and the inventory referred to in Article XX.134;

5° the claims and their annexes;

6° the minutes of the verification of claims;

7° the table referred to in Article XX.164;

8° the reports and distribution statements prepared by the curators, referred to in Articles XX.128, XX.168, and XX.192;

9° the balance sheet referred to in Article XX.147;

10° the list of transactions and approvals referred to in Article XX.151;

11° the simplified account referred to in Article XX.170;"

56 Article XX.131, § 1, 1° of the CDE.

57 Draft law of April 20, 2017, inserting Book XX "Insolvency of Enterprises" into the Code of Economic Law, and inserting definitions specific to Book XX, and provisions applicable to Book XX, into Book I of the Code of Economic Law, Explanatory Memorandum, Parl. Doc., Ch. repr., ord. sess. 2016-2017, no. 54-2407/1, p. 88.

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"population or the registered office" of several actors in bankruptcy proceedings, including insolvency practitioners⁵⁸.

74.

Based on these elements, the Contentious Chamber considers that in matters of bankruptcy, the authentic source to consult is RegSol, and not the ECB or the RN.

75.

The Contentious Chamber notes that although Book XX of the CDE came into force on May 1, 2018, RegSol has existed since April 1, 2017⁵⁹. Indeed, this authentic data source was first established in the law of December 1, 2016, amending the Judicial Code and the law of August 8, 1997, on bankruptcies to introduce the Central Register of Solvency. This law was subsequently clarified by the Royal Decree of March 23, 2017, organizing the operation of the Central Register of Solvency – both of which came into force on April 1, 2017.

76.

The defendant 1 rightly raised during the hearing that he did not have access to RegSol from the moment it was established. Indeed, the conclusion of a protocol with the data controllers of the authentic source was necessary to organize access.

77.

However, the Contentious Chamber specifically notes that this protocol was only adopted on January 27, 2023, following two or three years of negotiation, during which defendant 1 experienced many difficulties, partly caused by the context in which he and the negotiating parties found themselves, namely the health crisis caused by the Covid-19 pandemic.

78.

At the time when defendant 1 began negotiations with the data controllers of RegSol to organize access, this authentic source had already existed for nearly three years. Nevertheless, the Contentious Chamber points out that: (i) defendant 1 is a federal authority and, as such, has a duty of exemplary conduct as well as a duty of diligence, and; (ii) bankruptcy proceedings are procedures whose consequences can be extremely significant for the individuals involved⁶⁰, and in this regard, it is essential to exercise the utmost diligence when addressing correspondence intended for the curators.

79.

The Contentious Chamber also takes into account the fact that defendant 1 was already aware of the problems faced by the concerned curators since at least May 25.

58 Article 2, 7° of the CDE: "'insolvency practitioner': any person or body whose function, including on an interim basis, consists of performing one or more of the following tasks:

i) verifying and admitting claims submitted in the context of an insolvency procedure;

- ii) representing the collective interest of creditors;
- iii) administering, in whole or in part, the assets from which the debtor has been divested;
- iv) liquidating the assets referred to in point iii) and, where applicable, distributing the proceeds among the creditors; or
- v) monitoring the management of the debtor's affairs;"

59 Article 5 of the law of December 1, 2016, amending the Judicial Code and the law of August 8, 1997, on bankruptcies to introduce the Central Register of Solvency.

60 One thinks particularly of notifications of enforcement seizures which impose very short action deadlines.

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201861. The Contentious Chamber further notes that Defendant 1 did not inform the relevant curators of the situation and the solution sought.

80. By initiating negotiations with the data controllers of RegSol so late, despite being aware of the problems faced by the relevant curators, Defendant 1 did not implement all appropriate means to organize access to RegSol, and therefore did not act with the diligence required of it.

81.

During the hearing, the Contentious Chamber understood that Defendant 1 argued that RegSol was not initially an authentic source of data, thus justifying the delay in starting negotiations to organize access to RegSol. The Contentious Chamber cannot accept this reasoning. RegSol is designated as an authentic source of data by the normative texts that establish it, which have been cited above. These texts came into force no later than April 1, 2017, and do not provide for any transitional period after which only RegSol would become an authentic source of data. The fact that RegSol was not particularly rich in data at the outset—since it had just been created—does not alter this finding, nor does it change the fact that Defendant 1 initiated its negotiations too late.

82.

In conclusion, the Contentious Chamber considers that Defendant 1 has failed to comply with Articles 5.1.d), 5.2, 24, and 25 of the GDPR in that it did not act diligently in organizing its access to RegSol, which is the authentic source prevailing in bankruptcy matters, and that in this way it did not act in accordance with the principle of accuracy and also did not implement sufficient technical and organizational measures from the design stage and by default.

Regarding Defendant 3

83. With respect to the primacy of RegSol as an authentic source of data in bankruptcy matters, the Contentious Chamber refers to points 68 to 74 of this decision.

84. The Contentious Chamber further specifies that the order of July 17, 2020, guaranteeing the principle of unique data collection in the operation of services and bodies that fall under or execute certain missions for the authority, and concerning the simplification and harmonization of electronic and paper forms, came into force on September 11, 2020.

85. The Contentious Chamber notes that although Defendant 3 initiated negotiations with the data controllers of RegSol to organize access to this authentic source, it evidently initiated them too late, given that at the time of the hearing (December 11, 2024), this agreement had not yet been concluded.

61 See page 32 of the investigation report.

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86. Nevertheless, the Contentious Chamber points out that: (i) Defendant 3 is a federal authority and, as such, has a duty of exemplary conduct as well as a duty of diligence; and (ii) bankruptcy procedures are procedures whose consequences can be extremely significant⁶², and in this regard, the utmost diligence should be exercised when addressing correspondence to the curators.

87.

The Contentious Chamber also takes into account the fact that Defendant 3 had already been warned by the Inspection Service of the problems faced by the relevant curators since at least February 18, 2021⁶³. The Contentious Chamber further notes that Defendant 3 did not inform the relevant curators of the situation and the solution sought.

88. By initiating negotiations with the data controllers of RegSol so late, despite being aware of the

problems faced by the relevant curators, Defendant 3 did not implement all appropriate means to organize access to RegSol, and therefore did not act with the required diligence.

89. Furthermore, the Contentious Chamber adds that the Belgian Official Gazette does not constitute an authentic source of data, and therefore Defendant 3 cannot collect the personal data of the relevant curators from it.

90. Moreover, the Contentious Chamber notes, contrary to what Defendant 3 argues in its conclusions, that the disputed cases are not "isolated cases." The SI indeed counted 28 cases among 603 curators. The disputed cases—counted—represent slightly less than 5% of the curators. This thus demonstrates a systemic problem, which is further evidenced in this case since it emerges from the present analysis that Defendant 3 did not use the authentic source that should have been used in light of the purposes pursued by the processing in question, namely RegSol. In any event, the principle of accuracy applies in all cases; the GDPR does not provide for any exemption in this regard for "isolated cases."

91.

In conclusion, the Contentious Chamber considers that Defendant 3 has failed to comply with Articles 5.1.d), 5.2, 24, and 25 of the GDPR in that it did not act diligently in organizing its access to RegSol, which is the authentic source prevailing in bankruptcy matters, and that in this way it did not act in accordance with the principle of accuracy and also did not implement sufficient technical and organizational measures from the design stage and by default.

Regarding Defendant 4

62 The Contentious Chamber particularly thinks of notifications of enforcement seizures that impose very short action deadlines.

63 See page 115 of the investigation report.

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92.

Firstly, the Contentious Chamber notes that Defendant 4 is not subject to any decree imposing the principle of single data collection from authentic data sources, as it has already indicated in paragraph 49 of this decision.

93. Furthermore, the Contentious Chamber observes that Defendant 4 had established an internal automated system that queried the ECB in order to access the professional addresses of the curators. However, it appears from its findings that in response to the queries made by their automated system, the ECB returned the RN number of the curators, rather than their business number, which led it to send letters to the curators' private addresses instead of their professional addresses.

94. Consequently, it is noted – and even acknowledged by Defendant 4 – that it processed personal data that was inaccurate given the purpose of its collection.

95. Nevertheless, this is not sufficient to conclude that Defendant 4 violated the principle of accuracy. The mere circumstance that a data controller has processed inaccurate personal data cannot lead us to such a conclusion; this principle establishes an obligation of means, and it must still be demonstrated that Defendant 4 did not implement all reasonable measures to comply with this principle.

96. In this regard, it appears from the investigation report that Defendant 4 received at least two letters from curators notifying it of these issues. These are dated November 17, 2020, and December 30, 2020. The Contentious Chamber further notes that Defendant 4 did not inform the affected curators of the situation and the solution being sought.

97.

The Contentious Chamber also notes that the impact of using inaccurate personal data in the context of sending letters to curators on the rights and freedoms of the affected individuals can be quite significant (see paragraph 78 of this decision), and that therefore the principle of accuracy must be interpreted strictly. However, it must also be taken into account the amount of work that falls to Defendant 4, which must send a very large number of letters annually (3.5 million in the year 2020), and thus, it could not reasonably be expected of Defendant 4 to adjust its measures in the days or weeks following the moment it was informed that it was processing inaccurate data in sending letters to the affected curators. It remains that while the administrative burden can be considered in the

analysis of the proportionality of corrective measures, it cannot justify a prolonged persistence in non-compliant processing.

98. Defendant 4 states that it established an emergency procedure in March 2021, in order to inject into its eSigna application the business numbers – and thus the professional addresses – of the curators. Defendant 4 specifies that in this process, it had to

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manual encoding, which, given the number of taxpayers, justifies the delay in implementing this procedure. It specifies that this emergency procedure is only temporary, and that a more profound modification of its computer program is planned, and that the issue raised in the complaint should have disappeared with the new version of eSigna, which was expected to be released at the end of February 2022.

99. The Disciplinary Chamber notes that after this date, there have been no further complaints against defendant 4 regarding the same facts.

100. In any case, the Disciplinary Chamber observes that defendant 4 used a high-quality source of personal data, namely the BCE – although this does not constitute the authentic source of data in bankruptcy proceedings (see points 64 to 71), it is nevertheless an authentic source of data.

101. In conclusion, the Disciplinary Chamber considers that defendant 4 did not violate Article 5.1.d) of the GDPR, understanding that while he did use inaccurate data for a time given their purpose, he cannot be blamed for not having implemented all appropriate measures to comply with the principle of accuracy, as he was using an authentic source of data to collect the postal addresses of the relevant curators, and as soon as he was informed of the issues in this regard, he adapted his measures to process accurate data. However, the Chamber reminds that the use of an authentic source does not exempt one from contextual vigilance, particularly when repeated signals highlight the inadequacy of the data to the purpose of processing.

102. For informational purposes, however, the Disciplinary Chamber draws defendant 4's attention to points 64 to 91 of this decision, and the fact that while the BCE is indeed an authentic source of data, it is not the authentic source of data to be consulted in bankruptcy matters (the authentic source being RegSol), and that evidently the use of the BCE can lead to errors in addressing letters intended for curators, as has been observed in the cases of defendants 1 and 3, understanding that the BCE is not adequately supplemented by curators who practice as independent lawyers. Defendant 4 should also take this aspect into account in the future, should any future decrees indeed impose on him the use of authentic data sources and the principle of single data collection.

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II.2.3. Regarding the lawfulness of processing the private address of curators (Articles 5.1.a) and 6 of the GDPR)

103. Article 5.1.a) of the GDPR states that the processing of personal data must be carried out in a "lawful, fair, and transparent" manner.

104. Any processing of personal data must be based on one of the six lawful bases set out in Article 6.1 of the GDPR.

105. In this case, defendant 1 claims a public interest mission under Article 6.1.e) of the GDPR, and states that he consulted the BCE in accordance with the obligations imposed on him under the laws of August 15, 2012, and May 5, 2014.

106. Defendant 3 states that he sends letters to curators in the context of fulfilling his legal obligation and exercising the public interest mission or authority vested in him.

107. Defendant 4 states that he sends letters to curators as part of his legal obligation consisting of a mission to collect and recover Walloon taxes owed by bankrupt companies whose liquidation has been assigned to the said curators.

108. The Disciplinary Chamber does not find it relevant to comment on this aspect of the case, given that defendants 1, 3, and 4 believed, in this instance, that they were using the professional address of the curators, and not their private address. Therefore, the question at the heart of this case concerns the technical and organizational measures that defendants 1, 3, and 4 have put in place to comply with the principle of data accuracy. The Disciplinary Chamber refers the parties to points 64 to 82

(regarding defendant 1), 83 to 91 (regarding defendant 3), and 92 to 102 (regarding defendant 4) of this decision.

II.2.4. Regarding the lawfulness of the collection and access to the National Register (Articles 5.1.a) and 6 of the GDPR and the law of August 8, 1983)

109. Defendant 1 notes the quality of the National Register as an authentic source. Defendant 1 adds that he primarily uses the BCE when he needs to collect information about curators, and that in this context, he can obtain information from the RN without accessing the RN. He concludes by stating that he can only consult the RN as a subsidiary option.

64 It is the Chamber that emphasizes this.

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110. Defendant 3 argues that sending letters to the wrong address of curators has only occurred in a few isolated cases and that this issue has since been resolved. He further states that he does not use the RN for this purpose.

111. Defendant 4 states that he sends letters to curators as part of his legal obligation concerning the collection and recovery of Walloon taxes owed by bankrupt companies whose liquidation has been assigned to said curators, and that the use

112. The Contentious Chamber notes that there is no evidence that defendants 1, 3, and 4 have actually consulted the RN in this case, and does not consider it relevant to comment on this aspect of the file in any case.

II.2.5. Regarding the register of processing activities (Article 30 of the GDPR)

113. First, two things must be mentioned. The first is that the issue regarding the register of activities concerns only defendants 3 and 4, and more specifically the former. The second is that if the Inspection Service indeed found in its investigation report a violation of Article 30.1 read in conjunction with Article 30.4 of the GDPR concerning defendants 3 and 4 in that their registers of processing activities, as communicated to the Inspection Service, did not include all the elements listed in Article 30.1 of the GDPR, the Contentious Chamber has, for its part, not decided to address these aspects in the discussions held before it (see point 8 of this decision). Therefore, the parties were not invited to conclude in this regard, and the Contentious Chamber will not impose any sanction on this aspect.

114. That being said, and to the extent that defendant 3 has concluded on this aspect, the Contentious Chamber notes that indeed the Inspection Service reproached defendant 3 for the absence of several pieces of information listed in Article 30.1 of the GDPR, and more specifically the absence of the information referred to in points a), f), and g)65 of the same article.

65 Article 30.1 of the GDPR as highlighted by the Contentious Chamber: “1. Each data controller and, where applicable, the representative of the data controller shall maintain a record of processing activities carried out under their responsibility. This record shall contain all of the following information:

a) the name and contact details of the data controller and, where applicable, the joint data controller, the representative of the data controller, and the data protection officer;

b) the purposes of the processing;

c) a description of the categories of data subjects and the categories of personal data;

d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;

e) where applicable, transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49, paragraph 1, second subparagraph, the documents proving the existence of appropriate safeguards;

f) where possible, the envisaged time limits for erasure of the different categories of data;

g) where possible, a general description of the technical and organizational security measures referred to in Article 32, paragraph 1.”

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115. The Contentious Chamber notes that Defendant 3 acknowledges that certain information listed in point a) of Article 30.1 of the GDPR was missing from its record of processing activities, which it has subsequently corrected. However, it considers that the information listed in points f) and g) of the same

article has not been violated, understanding that they are not necessarily mandatory. Defendant 3 relies on the wording of these provisions.

116. The Contentious Chamber indeed notes that for each of these two points, the words "to the extent possible" are used. Therefore, it is appropriate to understand that there are situations in which it is not possible to reference this information in the record of processing activities, or that in any case, it is not possible to reference them fully. However, the Contentious Chamber considers that in such situations, the data controller should inform the supervisory authority of the reasons why such elements are not found in its processing record, if applicable, in order to effectively verify compliance with paragraphs 1 and 4 of Article 30 of the GDPR. The record of processing activities is indeed a central tool of the documentation obligation of the controller (Article 30), and a direct reflection of the principle of accountability. The Article 29 Working Party has indeed had the opportunity to state that it "is therefore a necessary prerequisite for compliance with the GDPR, and as such, an effective accountability measure."⁶⁶ as it allows both the supervisory authority and the data controller themselves to have an overview of all personal data processing activities.

III. Corrective Measures and Sanctions

III.1. Range of Sanctions

117. Pursuant to Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
 - 2° order a dismissal;
 - 3° pronounce a suspension of the ruling;
 - 4° propose a settlement;
 - 5° issue warnings and reprimands;
 - 6° order compliance with requests from the data subject to exercise their rights;
 - 7° order that the interested party be informed of the security issue;
 - 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 66 Article 29 Working Party, Guidelines on Data Protection Officers (DPOs), adopted on December 13, 2016, and revised on April 5, 2017, p. 22, available at:
<https://ec.europa.eu/newsroom/article29/items/612048>.

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- 9° order compliance with processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the Public Prosecutor's Office of Brussels, which informs it of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

III.2. Assessment of the Appropriate Sanction/Corrective Measure by the Contentious Chamber

118. Regarding Defendant 1: The Contentious Chamber decides to issue a reprimand to Defendant 1 for the violation of Articles 5.1.d), 5.2, 24, and 25 of the GDPR, understanding that it processed inaccurate personal data considering the purpose of their processing, and that this is attributable to its lack of diligence in the context of engaging in negotiations regarding the conclusion of a protocol enabling access to the authentic source of data that should be used in bankruptcy proceedings, namely RegSol. The Contentious Chamber takes into account that Defendant 1 has managed to conclude such a protocol on March 9, 2023. However, this circumstance does not erase past violations.

119. Regarding Defendant 2: The Contentious Chamber decides to dismiss the aspects of the complaint related to Defendant 2 for technical reasons, understanding that it does not emerge from the case files or the investigation report more specifically that Defendant 2 actually carried out the data processing that the complainant accuses it of.

120. Regarding Defendant 3: The Contentious Chamber decides to issue a reprimand to Defendant 3 for the violation of Articles 5.1.d), 5.2, 24, and 25 of the GDPR, understanding that it processed inaccurate personal data considering the purpose of their processing, and that this is attributable to its lack of diligence in the context of engaging in negotiations regarding the conclusion of a protocol enabling its access to the authentic source of data that should be used in the case at hand, namely RegSol. The Contentious Chamber takes into account that Defendant 3 is currently in negotiations to conclude a protocol enabling its access to the

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authentic source of data to be used in bankruptcy proceedings, namely RegSol. However, this circumstance does not erase past failures.

121. Regarding defendant 4: the Contentious Chamber decides to issue a dismissal concerning the complaints directed against defendant 4, understanding that while it is true that defendant 4 processed inaccurate personal data considering the purpose of their processing, it quickly adopted reasonable measures to rectify them, and furthermore, it had implemented adequate and reasonable technical and organizational measures so that, by design and by default, it processed accurate data in the context of sending notifications to the relevant curators. Moreover, the Contentious Chamber refers defendant 4 to point 102 of this decision.

IV. Publication of the decision

122. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority.

123. In this case, the Contentious Chamber decides to publish this decision with the identification of the board of French-speaking curators of Brussels and defendants 1, 3, and 4. This serves several objectives.

124. Firstly, it serves a public interest objective. The defendants are public authorities; defendant 1 is a federal authority, and defendants 3 and 4 are federated authorities. Each of them processes a very large number of personal data, considering that they are tax authorities. Moreover, the processing in question may have a certain impact on the rights and freedoms of the individuals concerned, given that it relates to bankruptcy proceedings, which involve sending certain notifications whose consequences can be very serious, and for which the deadlines for action can be very tight.

125. Furthermore, the identification of the board of French-speaking curators of Brussels and defendants 1, 3, and 4 is also necessary for the proper understanding of the decision, and thus for the realization of the transparency objective pursued by the publication policy of the decisions of the Contentious Chamber.